

25STCV07343 25STCV07343

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 25STCV07343 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION
AND

MOTION FOR COMPLIANCE WITH

DISCOVERY PROCESS AND THE

COURT'S MARCH 24, 2026 ORDER

COMPELLING PLAINTIFF'S
DEPOSITION

WITH SANCTIONS

Background Facts

Plaintiffs Ricardo Campos Sanchez
and Marlene Romero sue Defendant American Honda Motor Co., Inc. ("Defendant"),
and Does 1 through 10 pursuant to a March 14, 2025, Complaint alleging lemon
law claims related to Plaintiffs' purchase of a 2020 Honda Insight manufactured
and/or distributed by Defendant.

Before the Court is Defendant's un-opposed
motion to compel compliance with this Court's March 24, 2026, order imposing
monetary sanctions on Plaintiff Ricardo Sanchez Campos, which Defendant argues
have not been paid to date. Defendant has filed a notice of non-opposition
noting the absence of opposition from Plaintiffs.

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Motion to Compel
Compliance with Court Order

The Court finds in favor of
Defendant in part and in favor of Plaintiff Ricardo Sanchez Campos in part.

The Court finds merit in
Defendant's request for an order directing Plaintiff Ricardo Sanchez Campos to
comply with the Court's March 24, 2026, order, which ruled that several
discovery motions directed at this plaintiff were moot but nevertheless imposed
monetary sanctions on him in the amount of \$2,000.00, to be paid directly to
Defendant's counsel within 30 days. (Motion, pp. 4-5; see 3/24/26 Minutes, p. 1.)
Every California court has the inherent and statutory authority to provide for
the orderly conduct of proceedings before it and to control its process and
orders so as to make them conform to law and justice. (Code Civ. Proc., § 128,
subds. (a)(3), (a)(8).) Here, conforming the facts before the Court to justice
necessitates ordering Plaintiff Richard Sanchez Campos to comply with this
Court's March 24th order. Defendant's motion is thus GRANTED as to this
requested relief.

However, Defendant's motion is
DENIED as to the imposition of either further monetary sanctions or terminating
sanctions. As for monetary sanctions, such sanctions orders are enforceable as
money judgments unless the court orders otherwise; instead, the remedy to
enforce payment of monetary sanctions is to obtain and levy a writ of execution
on assets of the debtor. (Newland v. Superior Court (1995) 40
Cal.App.4th 608, 615.) Sanctions cannot be imposed for failure to pay
previously ordered sanctions. (Ibid.) As for terminating sanctions, such
remedy is disproportionate to the violation here, which is a mere failure to
pay money rather than a violation substantively affecting Defendant's ability
to develop its denials and defenses.

a. Conclusion

Defendant American Honda Motor Co.,
Inc.'s motion is thus:

(1) GRANTED as to ordering

Plaintiff to remit sanctions previously ordered by this Court, which the Court
ORDERS Plaintiff to remit within fourteen (14) days of service this order; and

(2) DENIED as to monetary and
terminating sanctions.

Defendant American Honda Motor Co.,
Inc. is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.